

Disposal of Consignment Rules, 1990

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Union of India - Act

Disposal of Consignment Rules, 1990

UNION OF INDIA

India

Disposal of Consignment Rules, 1990

Rule DISPOSAL-OF-CONSIGNMENT-RULES-1990 of 1990

Published on 12 November 1990

Commenced on 12 November 1990

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Disposal of Consignment Rules, 1990

Published vide Notification Gazette of India, Extra, Part 2, Section 3(i), dated 12.11.1990.

1568.

G.S.R. 901(E), dated 12.11.1990- In exercise of the powers conferred by clauses (j) and (k) of sub-section (2) of section 87 of the Railways Act, 1989 (

24 of 1989

), the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement :-

(1)

these rules may be called the disposal of Consignment Rules, 1990.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Manner of disposal of detained or unclaimed consignment :-

(1)

If any consignment,-

(a)

detained under section 83 of the Railways Act, 1989, or

(b)

treated as unclaimed in respect of which notice under section 84 of the said Act cannot be served or there is a failure to comply with the requisition in the said notice;

is not sold by public auction, the Divisional Commercial Superintendent may, on being of the opinion that it is not expedient to hold the auction, record reasons therefor in writing and may direct the sale of consignment of part thereof by inviting offers.

(2)

Offers for the purchase of consignment may be invited,-

(a)

from the regular dealers of such goods as are in the consignment;

(b)

from such departments of the Central Government and of the State Government as appear likely to purchase such goods; or

(c)

from the government undertakings.

(3)

The highest of the offers of price may be accepted by the Divisional Commercial Superintendent and the goods may be sold to the highest offerer;

(4)

Where only one offer is received, the Divisional Commercial Superintendent may, keeping in view the condition and quality of the goods and the prevailing market rate, accept that offer if he considers such offer to be a fair price for the goods and the goods may be sold to that offerer.

3.

Notice for public auction:-

Where there is no local newspaper in which notice of the public auction can be published, such notice shall be displayed at a conspicuous place,-

(a)

at the goods shed;

(b)

at the parcel office;

(c)

at the lost property office, if any, or

(d)

at the premises where such auction is to be held.

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